



CHAPTER xxxiii.

An Act to confirm certain Provisional Orders of the A.D. 1918.
Local Government Board relating to Batley Bognor
Lancaster Shrewsbury and Todmorden (Rural).

[8th August 1918.]

WHEREAS the Local Government Board have made the
Provisional Orders set forth in the schedule hereto under
the provisions of the Public Health Act 1875:

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be
confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty
by and with the advice and consent of the Lords Spiritual and
Temporal and Commons in this present Parliament assembled
and by the authority of the same as follows:—

1. The Orders set out in the schedule hereto shall be and
the same are hereby confirmed and all the provisions thereof
shall have full validity and force.

Orders in
schedule
confirmed.

2. This Act may be cited as the Local Government Board's
Provisional Orders Confirmation (No. 4) Act 1918.

Short title.

A.D. 1918.

S C H E D U L E.

BOROUGH OF BATLEY.

Batley Order. *Provisional Order for altering the Batley Corporation
Waterworks Act 1871 and the Batley Corporation
Waterworks Act 1878.*

To the Mayor Aldermen and Burgesses of the Borough of
Batley ; —

And to all others whom it may concern.

WHEREAS the Borough of Batley (hereinafter referred to as "the
Borough") is an Urban District of which the Mayor Aldermen and
Burgesses acting by the Council (hereinafter referred to as "the
Corporation") are the Urban District Council and the local authority
within the meaning of the Public Health Act 1875;

34 Vict. c. xl.
41 Vict.
c. xxvii.

48 & 49 Vict.
c. cvii.

And whereas the unrepealed provisions of the Batley Corporation
Waterworks Act 1871 and the Batley Corporation Waterworks Act 1878
(which Acts are hereinafter together referred to as "the Local Acts") as
altered by a Provisional Order of the Local Government Board (herein-
after referred to as "the Order") dated the Third day of June One
thousand eight hundred and eighty-five and confirmed by the Local
Government Board's Provisional Orders Confirmation (No. 7) Act 1885
and by certain other Provisional Orders duly confirmed by Parliament
which do not affect the subject-matter of this Order are in force in the
Borough ;

And whereas by the Local Acts the Corporation were authorised
to make and maintain waterworks including certain reservoirs called
the Yateholme Riding Wood and Ramsden Reservoirs to acquire certain
lands to impound take and divert into or by means of the said works
certain streams or waters including the Great Bent Dike and the
Netherley Clough and to supply water ;

And whereas it is expedient that for the purpose of protecting
their waters and waterworks against pollution fouling contamination

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Provisional Orders Confirmation (No. 4) Act, 1918.

and injury the Corporation should be empowered to acquire other lands within the drainage areas of their waters and waterworks; A.D. 1918.
Batley Order

And whereas by the Local Acts as altered by the Order provision was made for the borrowing of money by the Corporation for the purposes of the Local Acts and for the repayment of the moneys so borrowed ;

And whereas the Corporation have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Local Acts in the manner hereinafter set forth :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Acts shall be altered so that the following provisions shall have effect viz.,— 38 & 39 Vict.
c. 55.

Art. I. The Corporation may for the purposes of protecting their waters and waterworks against pollution fouling contamination or injury purchase take on lease and acquire by agreement and hold any lands within the drainage areas of the Great Bent Dike and the Netherley Clough and the Yateholme Riding Wood and Ramsden Reservoirs and other works of the Corporation authorised by the Local Acts. Power to acquire lands for protection of waters and waterworks authorised by the Local Acts.

Art. II. The Corporation shall not construct any works for taking or intercepting water from any lands acquired by them in pursuance of Article I. of this Order unless the works are authorised by and the lands upon which the same are to be constructed are specified in an Act of Parliament or Provisional Order confirmed by Parliament but nothing in this Article shall prevent the Corporation from constructing and laying down drains sewers water-courses and other works and conveniences necessary or proper for the purpose of intercepting or taking all foul waters arising or flowing upon such lands or necessary or proper for preventing the water which the Corporation are empowered to impound or take in the said drainage areas from being polluted fouled or contaminated. Limiting powers of Corporation to sink wells or abstract water.

Art. III. The Corporation may let on lease or otherwise any lands acquired by them in pursuance of Article I. of this Order for such consideration and upon such terms and conditions as the Corporation may think fit. Power to let lands.

Art. IV. The purposes of this Order shall be deemed to be purposes of the Local Acts for which the Corporation may borrow money : Borrowing powers of Local Acts made applicable.

Provided that any sums borrowed by the Corporation for the purposes of this Order shall not exceed in the whole the sum of ten thousand pounds.

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Batley Order.

Consent of
Treasury to
borrowing
during war.

Art. V. Notwithstanding anything in this Order the Corporation shall not under the powers of this Order borrow any money during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

Short title.

Art. VI. This Order may be cited as the Batley Order 1918.

Given under the Seal of Office of the Local Government Board
this Tenth day of May One thousand nine hundred and eighteen.

(L.S.)

W. HAYES FISHER President.

H. C. MONRO Secretary.

URBAN DISTRICT OF BOGNOR.

*Bognor
Order.*

*Provisional Order for altering the Local Act 5 & 6 Wm. IV.
cap. ci.*

To the Urban District Council of Bognor; —

And to all others whom it may concern.

WHEREAS the Urban District Council of Bognor (hereinafter referred to as "the Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Bognor (hereinafter referred to as "the District");

30 & 31 Vict.
c. lxxxiii.
5 & 6 Will. IV.
c. ci.

And whereas by a Provisional Order dated the Tenth day of June One thousand eight hundred and sixty-seven and confirmed by the Local Government Supplemental Act 1867 (No. 5) certain sections of the Local Act (hereinafter referred to as "the Local Act") intituled "An Act for paving lighting watching and otherwise improving the Town of Bognor in the County of Sussex and for amending and enlarging two Acts of Parliament passed in the third and sixth years of the reign of His late Majesty King George the Fourth relating to the said Town" were repealed and certain of the powers duties authorities advantages and penalties then vested in or attaching to the Commissioners under the Local Act were transferred to the Bognor Local Board;

And whereas under powers conferred by the Local Act the Commissioners under that Act acquired lands and laid out roads promenades walks and esplanades;

And whereas the Council are the successors of the Local Board;

7 Edw. 7.
c. 53.

And whereas by virtue of an order of the Local Government Board dated the Third day of June One thousand nine hundred and nine Part VI. of the Public Health Acts Amendment Act 1907 is in force in the District;

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And whereas it is expedient that the Council should be authorised to take on lease a piece of consecrated ground in the District with a Church Tower and other buildings thereon now used as vestry rooms being the site and remains of the old Parish Church of Bognor and to maintain and use the same for public parochial and other purposes and for that purpose the Council have made application to the Local Government Board for the issue of a Provisional Order to alter the Local Act in the manner hereinafter set forth:

A.D. 1918.

*Bognor
Order.*

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act shall be altered so that the following provisions shall take effect that is to say:—

38 & 39 Vict.
c. 55.

Art. I. The Vicar of the Ecclesiastical Parish of Bognor may by virtue of and for the purposes of this Order let to the Council and the Council may take on lease from the Vicar the aforesaid piece of ground with the Church Tower and other buildings thereon upon such terms and conditions and for such period as they may agree.

Authorising
Council to
take old
Church
Tower and
site on lease.

Art. II. During the continuance and subject to the terms and conditions of any lease granted in pursuance of the provisions of Article I. of this Order the Council may—

Purposes for
which old
Church
Tower and
site may be
used.

(i) maintain the Church Tower and other buildings and use the buildings for such public parochial and other purposes as may from time to time be approved by the Local Government Board and carry out such alterations and adaptations of the buildings as they may consider necessary for the said purposes;

(ii) lay out and maintain the remainder of the ground as a public garden or recreation ground;

(iii) defray out of the district fund and general district rate of the District any expenses incurred by them in the execution of the powers conferred upon them by this Order;

and the provisions of Section 164 of the Public Health Act 1875 and of Part VI. of the Public Health Acts Amendment Act 1907 shall apply to the ground which is laid out as a public garden or recreation ground as if the same had been provided by the Council under the first-mentioned section.

Art. III. This Order may be cited as the Bognor Order 1918.

Short title.

Given under the Seal of Office of the Local Government Board
this Tenth day of May One thousand nine hundred and eighteen.

(L.S.)

W. HAYES FISHER President.

H. C. MONRO Secretary.

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Provisional Orders Confirmation (No. 4) Act, 1918.

A.D. 1918.

BOROUGH OF LANCASTER.

*Lancaster
Order.*

*Provisional Order for altering the Lancaster Corporation
Act 1900 and the Local Government Board's
Provisional Order Confirmation (No. 6) Act 1916.*

To the Mayor Aldermen and Burgesses of the Borough of
Lancaster ; —

And to all others whom it may concern.

WHEREAS the Borough of Lancaster (hereinafter referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the Council (hereinafter referred to as "the Corporation") are the Urban District Council and the local authority within the meaning of the Public Health Act 1875;

63 & 64 Vict.
c. cxxxvi.
6 & 7 Geo. 5.
c. xxx. And whereas there are in force in the Borough the unrepealed provisions of the Lancaster Corporation Act 1900 (hereinafter referred to as "the Local Act") as altered by the Lancaster Order 1916 (hereinafter referred to as "the Order of 1916") which was confirmed by the Local Government Board's Provisional Order Confirmation (No. 6) Act 1916 (hereinafter referred to as "the Confirming Act of 1916") and by another Provisional Order duly confirmed by Parliament which does not affect the subject-matter of this Order ;

And whereas by Article II. of the Order of 1916 the Corporation were authorised to provide and run motor omnibuses and by subdivision (9) of that Article the Corporation were empowered with the sanction of the Local Government Board and subject to the provisions of the Order of 1916 to borrow upon the securities specified in the said subdivision such sums not exceeding in the whole the sum of ten thousand pounds as might from time to time be necessary for the purposes of that Article ;

And whereas the Corporation have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Local Act as altered as aforesaid and the Confirming Act of 1916 so far as it relates to the Order of 1916 in the manner hereinafter set forth :

38 & 39 Vict.
c. 55. Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 297 and 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act as altered as aforesaid and the Confirming Act of 1916

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so far as it relates to the Order of 1916 shall be altered so that the following provisions shall have effect that is to say:—

—
*Lancaster
Order.*

Art. I. The Local Act as altered as aforesaid and the Confirming Act of 1916 so far as it relates to the Order of 1916 shall have effect as if the words “not exceeding in the whole the sum of ten thousand pounds” were omitted from subdivision (9) of Article II. of the Order of 1916.

Increase of
borrowing
powers for
purposes of
motor
omnibuses.

Art. II. This Order may be cited as the Lancaster Order 1918.

Short title.

Given under the Seal of Office of the Local Government Board
this Tenth day of May One thousand nine hundred and eighteen.

(L.S.)

W. HAYES FISHER President.

H. C. MONRO Secretary.

BOROUGH OF SHREWSBURY.

*Provisional Order for partially repealing and altering the
Shrewsbury Improvement Act 1855.*

*Shrewsbury
Order.*

To the Mayor Aldermen and Burgesses of the Borough of
Shrewsbury;—

And to all others whom it may concern.

WHEREAS the Borough of Shrewsbury (hereinafter referred to as “the Borough”) is an Urban District of which the Mayor Aldermen and Burgesses acting by the Council (hereinafter referred to as “the Corporation”) are the Urban District Council and the local authority within the meaning of the Public Health Act 1875;

And whereas the unrepealed provisions of the Shrewsbury Improvement Act 1855 (hereinafter referred to as “the Local Act”) are in force in the Borough;

18 & 19 Vict.
c. clxxviii.

And whereas by Section 26 of the Local Act certain of the provisions of the Towns Improvement Clauses Act 1847 including provisions relating to the drainage of houses were incorporated with the Local Act;

10 & 11 Vict.
c. 34.

And whereas by Sections 29 and 30 of the Local Act provision was made with regard to the width of new streets and the giving of notice by any person intending to lay out a new street of such intention and the furnishing by such person of plans and sections showing the line level and direction of the new street;

And whereas the Corporation have made application to the Local Government Board for the issue of a Provisional Order to partially

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A.D. 1918. repeal alter or amend the Local Act in the manner hereinafter set
—
Shrewsbury forth :
Order.

38 & 39 Vict. Now therefore We the Local Government Board in pursuance of
c. 55. the powers given to Us by Section 303 of the Public Health Act 1875
and by any other Statutes in that behalf do hereby order that from
and after the date of the Act of Parliament confirming this Order the
Local Act shall be partially repealed and altered so that the following
provisions shall take effect that is to say :—

Repeal of Sec-
tions of Local
Act.

Art. I. Sections 29 and 30 of the Local Act are hereby repealed.

Corporation
may order
houses to be
drained by a
combined
drain.

Art. II.—(1) If it appears to the Corporation that two or more houses
may be drained more economically or advantageously in combination
than separately and a sewer of a sufficient size already exists or is
about to be constructed within one hundred feet of any part of such
houses the Corporation may when the drains of such houses are first
laid order that such houses be drained by a combined drain to
be constructed either by the Corporation if they so decide or by
the owners in such manner as the Corporation shall direct and the
costs and expenses of such combined drain and of the repair and
maintenance thereof shall be apportioned between the owners of such
houses in such manner as the Corporation shall determine and if such
drain is constructed by the Corporation such costs and expenses may
be recovered by the Corporation from such owners summarily as civil
debts.

(2) Any combined drain constructed in pursuance of this Article
shall for the purposes of the Public Health Acts be deemed to be a
drain and not a sewer.

(3) Provided that the Corporation shall not exercise the powers con-
ferred by this Article in respect of any house plans for the drainage of
which shall have been previously approved by the Corporation.

(4) Any person deeming himself aggrieved by any order direction
or determination made by the Corporation under the provisions of
subdivision (1) of this Article may appeal to the next practicable
court of quarter sessions under and according to the provisions of the
Summary Jurisdiction Acts.

Short title.

Art. III. This Order may be cited as the Shrewsbury Order 1918.

Given under the Seal of Office of the Local Government Board
this Sixth day of May One thousand nine hundred and eighteen.

(L.S.)

W. HAYES FISHER President.
H. C. MONRO Secretary.

RURAL DISTRICT OF TODMORDEN.

A.D. 1918.

*Provisional Order to enable the Rural District Council of
Todmorden to put in force the Compulsory
Clauses of the Lands Clauses Acts.*

*Todmorden
Rural Order.*

To the Rural District Council of Todmorden ; —

And to all others whom it may concern.

WHEREAS the Rural District Council of Todmorden (hereinafter referred to as "the Council") require to purchase and take the lands described in the schedule hereto for the disposal of the sewage of the contributory place of Heptonstall in their District and for providing access to the said lands :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 176 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall have effect that is to say :—

38 & 39 Vict.
c. 55.

Art. I. The Council shall be empowered to put in force with reference to the lands described in the schedule hereto subject to the continuance of existing public rights of highway (if any) and for the purposes aforesaid the powers of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement or any of them.

Compulsory
powers of
purchase.

Art. II. This Order may be cited as the Todmorden Rural Order 1918.

Short title.

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A.D. 1918.

The SCHEDULE above referred to.

*Todmorden
Rural Order.*

Parish of HEPTONSTALL in the County of the West Riding of YORKSHIRE.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
1	Land known as Kingdom Field part of Hollings Farm used as Sewage Disposal Works.	The Trustees of the Will of John Shackleton deceased namely Mark King Alfred Ogden.	Todmorden Rural District Council.	Todmorden Rural District Council.
1A	River Bed - -	Ditto.	-	-
2	Woodland - -	William Edward Greenwood.	In hand - -	In hand.
3	Field or pasture land part of Slater Bank Farm.	Elizabeth Sutcliffe Francis Wood Annie Elizabeth Milligan.	- - -	Sutcliffe Pickles.

Given under the Seal of Office of the Local Government Board
this Tenth day of May One thousand nine hundred and eighteen.

(L.S.)

W. HAYES FISHER President.

H. C. MONRO Secretary.

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